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CASE #	CASE NAME	HEARING NAME
CVRI2203266	HARB VS COUNTY OF RIVERSIDE	MOTION TO BIFURCATE

Tentative Ruling:

Matter off calendar. Motion was decided on April 20, 2026: The motion to bifurcate will be heard as a motion in limine during the trial.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504589	PARRA VS HYUNDAI MOTOR AMERICA	MOTION FOR JUDGMENT ON THE PLEADINGS ON COMPLAINT

Tentative Ruling:

The Court orders Defendant to meet and confer in person, or via phone or videoconference with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the judgment on the pleadings. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to a judgment on the pleadings and identify with legal support the basis of the deficiencies. Plaintiff shall provide legal support for its position that the pleading is legally sufficient or, in the alternative, how the First Amended Complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall, 10 days before the continued hearing date set, do one of the following: (1) vacate the hearing on the motion; (2) file with the Court a declaration stating the parties have agreed that Plaintiff will file an amended complaint before the next hearing date; or (3) file with the court a declaration stating the means by which the parties met and conferred and identify the specific objections in the motion and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., § 439 subd. (a)(3).)

The Court and parties will identify the future hearing date on June 5, 2026.

CASE #	CASE NAME	HEARING NAME
CVRI2502062	Lindsey v. County of Riverside	Demurrer to 1st Amended Complaint

Summary of Ruling: The Court overrules the demurrer in its entirety.

Factual / Procedural Context:

This is a FEHA action. Plaintiff Meshia Lindsey ("Plaintiff") alleges she was an Assistant Communicable Disease Specialist with Defendant County of Riverside ("Defendant") and was wrongfully terminated. Plaintiff alleges that she has "excellent" job performance and was promoted to a Social Services Practitioner III in April 2023. She alleges that she suffers from multiple disabilities, including vision impairment, carpal

tunnel syndrome, lower back problems, and generalized stress and anxiety disorders. She alleges that she put the County on notice of these conditions beginning with her job application (vision impairment) and continuing through disclosures to a nurse and requests for ergonomic equipment with the supervisors. Plaintiff also allegedly filed a workers' compensation claim on 2/26/24 that listed her various conditions.

Plaintiff alleges that after she again requested accommodation in 2024, she began to experience a pattern of harassment and retaliation. This allegedly included demeaning comments made by her supervisor about her work speed, preventing her from taking lunch and rest breaks, and giving her heavy workloads. Plaintiff claims that she also expressed work-related concerns to upper management in a 3/4/24 meeting, but no action was taken. Defendant then terminated Plaintiff on 4/12/24 while she was serving on a jury. The operative First Amended Complaint, filed 3/3/26, asserts: (1) disability discrimination; (2) failure to engage in an interactive process; (3) failure to provide reasonable accommodations; (4) retaliation; (5) hostile work environment-harassment; and (6) failure to prevent harassment and retaliation.

Defendant now demurs to all causes of action for failure to state facts sufficient and on uncertainty grounds. Defendant argues that the FAC is a sham pleading. It contends that Plaintiff improperly added new disabilities such as vision impairment, carpal tunnel, back problems, after her initial "stress and anxiety" allegations were found deficient. Defendant argues that the court should disregard these new additions. Defendant further argues that there are no allegations that management was put on notice of the newly pled disabilities. Defendant contends that Plaintiff fails to show that she suffered any adverse action because of her disabilities. Defendant also argues that Plaintiff cannot show that she experienced any severe and pervasive actions to constitute a hostile work environment. As the underlying claims for discrimination, retaliation, and harassment fail, the derivative claims for failure to engage in the interactive process, failure to accommodate, and failure to prevent also fail.

In opposition, Plaintiff argues that the sham pleading doctrine is inapplicable because she has not contradicted or omitted prior allegations but has added new facts. Plaintiff argues that the FAC now sufficiently pleads all claims. She asserts that she provided notice of her disabilities through her job application, accommodation requests, and a workers' compensation claim. Plaintiff argues that adverse actions (demeaning comments, denial of breaks, unrealistic workloads, and termination) began immediately after her accommodation requests, showing a close temporal connection as evidence of discriminatory motive and a causal link. She asserts that whether the conduct was "severe or pervasive" is a question of fact not to be resolved on demurrer. Because the underlying claims are sufficient, the derivative claims also survive.

In reply, Defendant repeats that the FAC is a sham pleading. It argues that Plaintiff's own allegations show her break periods were impacted by "workload and lack of personnel," which are staffing/workplace resource issues, not harassment.

Analysis

A. Meet and Confer

Code of Civil Procedure section 430.41 requires the demurring party to meet and confer with the party via *phone, videoconferencing, or in person* before filing a demurrer. Defense counsel sent a letter on 3/26/26 (Christopoulos Decl. ¶ 4) and conferred telephonically with Plaintiff's counsel on 5/28/26 (Christopoulos Suppl. Decl. ¶ 5). Defendant complied.

B. Standard

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pled, of facts which may be inferred from those expressly pled, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If a complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

C. Sham Pleading

Under the sham pleading doctrine, a pleader cannot circumvent prior admissions by simply amending a pleading without explanation. (*Womack v. Lovell* (2015) 237 Cal.App.4th 772, 787; *Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 426.) Here, Plaintiff's inclusion of new allegations regarding her physical disabilities is not wholly inconsistent with the prior pleading. In her original complaint, Plaintiff's allegations regarding "anxiety and stress" were deemed insufficient to state a qualifying disability under FEHA. In the FAC, she supplements those allegations with additional physical conditions such as "vision impairment, carpal tunnel syndrome, and lower back problems." (FAC, ¶ 11.) These newly pled conditions do not contradict her prior allegations and does not render the FAC a sham pleading.

D. The Demurrer

1. Disability Discrimination (First Cause of Action)

To establish a prima facie case of disability discrimination under the FEHA, a plaintiff must show that she (1) suffered from a disability or was regarded as disabled, (2) was able to perform the essential functions of the job either with or without reasonable accommodation and (3) was subjected to an adverse employment action because of her disability. (*Faust v. California Portland Cement Co.* (2007) 150 Cal.App.4th 864, 886; *King v. United Parcel Service, Inc.* (2007) 152 Cal.App.4th 426, 432.)

Previously, Plaintiff's original complaint was deficient for failing to connect her alleged stress and anxiety to an actionable disability. The FAC now alleges multiple physical and mental disabilities, including "vision impairment, carpal tunnel syndrome,

lower back problems, and generalized stress and anxiety disorders.” (FAC, ¶ 11.) It further alleges that there were multiple instances of Defendant’s awareness of these conditions, including notice on her job application, disclosures to a nurse, accommodation requests made to supervisors, and an official workers’ compensation claim that listed these conditions. (*Id.* ¶¶ 11, 18, 23.) Plaintiff has also pled termination as an adverse employment action. This is now sufficient.

The Court overrules the demurrer to the first cause of action.

2. Failure to Engage in Interactive Process and Failure to Accommodate (Second and Third Causes of Action)

Gov. Code § 12940(n) requires that an employer must engage in a “timely, good faith interactive process...in response to a request for a reasonable accommodation by an employee or applicant with a known physical or mental disability or known medical condition.” A failure to engage in this process is a separate FEHA violation. (*Wilson v. County of Orange* (2007) 169 Cal.App.4th 1185, 1193.) There are no magic words to initiate the process, and the obligation arises once the employer becomes aware of the need to consider an accommodation. (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1013.)

Here, the FAC alleges that Plaintiff requested “adequate lighting and ergonomic equipment” to accommodate her conditions and that “[a]t no point, did anyone at COR engage Lindsey in an interactive process... [or] provide her reasonable accommodations despite her multiple requests.” (FAC, ¶¶ 11, 23.) Taking as true at the pleading stage, these allegations are sufficient.

The Court overrules the demurrer to the second and third causes of action.

3. Retaliation (Fourth Cause of Action)

FEHA makes it unlawful for an employer to retaliate against an employee who reports or otherwise opposes prohibited discrimination or harassment. (Gov. Code, § 12940, subd. (h).) To establish a prima facie case of retaliation under FEHA, a plaintiff must show: (1) he engaged in a protected activity; (2) the employer subjected plaintiff to an adverse employment action; and (3) a causal link exists between the protected activity and the employer’s action. (*Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.)

The FAC alleges that Plaintiff engaged in protected activities by requesting accommodations for her disabilities in January and February 2024 and by filing a workers’ compensation claim on 2/26/24. (FAC, ¶¶ 12, 13, 18.) The FAC also alleges that Plaintiff was then subjected to a “pattern of disparate treatment, harassment and retaliation” (*Id.*, ¶ 14), and that Defendant terminated Plaintiff on 4/12/24. (*Id.*, ¶ 21.) The close temporal proximity of about 2 months between the protected activities and her termination is sufficient at the pleading stage to create an inference of a causal link.

The Court overrules the demurrer to the fourth cause of action.

4. Harassment (Fifth Cause of Action)

Under FEHA, it is unlawful for an employer “because of race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, or military and veteran status, to harass an employee, an applicant, an unpaid intern or volunteer, or a person providing services pursuant to a contract.” (Gov. Code § 12940, subd. (j)(1).) To demonstrate a prima facie case of hostile work environment harassment, a plaintiff must demonstrate: (1) he is a member of protected class; (2) he was subject to harassment; (3) the harassment was based on the protected characteristic; (4) the harassment unreasonably interfered with work by creating an intimidating, hostile, or offensive work environment; and (5) defendant is liable. (*Thompson v. City of Monrovia* (2010) 186 Cal.App.4th 860, 876.) Harassment requires conduct that is sufficiently severe or pervasive to alter the conditions of the victim’s employment. (*Etter v. Veriflo Corp.* (1998) 67 Cal.App.4th 457, 464-65.)

Defendant argues that the conduct alleged is not sufficiently severe or pervasive and thus cannot state a cause of action. To be actionable, the alleged harassment, “must be sufficiently severe or pervasive ‘to alter the conditions of ... employment and create an abusive working environment.’” (*Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 609.) The environment must be evaluated in light of the totality of the circumstances: “[w]hether an environment is ‘hostile’ or ‘abusive’ can be determined only by looking at all the circumstances, which may include the frequency of the discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee’s work performance.” (*Harris v. Forklift Systems, Inc.* (1993) 510 U.S. 17, 23.) If the workplace is “permeated with ‘discriminatory intimidation, ridicule, and insult,’ ” then that is “sufficiently severe or pervasive to alter the conditions of the victim’s employment and create an abusive working environment.” (*Id.*, at 21.)

Here, the allegations include the supervisor’s comments such as “why are you so slow at this?” “why can’t you work faster, it doesn’t take a rocket scientist to do this,” “you have to finish these reports before you take your lunch.” (FAC ¶ 14.) The FAC also alleges that Plaintiff was being prevented from taking breaks “due to the workload and lack of personnel.” (*Id.*) While the supervisor’s comments are not explicitly tied to Plaintiff’s physical disabilities, the FAC alleges that this pattern of conduct began “[f]ollowing her requests for accommodations.” (FAC ¶ 14.) When viewing the totality of the circumstances, the allegations are minimally sufficient to survive demurrer. The questions of motive and severity are questions of fact for a jury.

The Court overrules the demurrer to the fifth cause of action.

5. Failure to Prevent Harassment/Retaliation (Sixth Cause of Action)

Gov. Code §12940(k) creates a separate cause of action for failure to take reasonable steps necessary to prevent harassment. The general elements include a duty of care, breach, causation and damages. (See *Trujillo v. North County Transit District* (1998) 63 Cal.App.4th 280, 289.) As a rule, there can be no failure to prevent claim if

there is no underlying discrimination. (*Id.* at 284.) Here, this claim is derivative of the underlying claims for discrimination, harassment, and retaliation. Because the underlying claims are sufficiently pled, this claim survives as well. The FAC also alleges that Plaintiff brought her work-related concerns to upper management, who failed to take corrective action and instead terminated her. (FAC ¶¶ 20-21.) Taken as true at the pleading stage, the allegations are sufficient.

As such, the Court overrules the demurrer to the sixth cause of action.